

LIFEPROTECT PERMANENT DISABILITY COVER

This cover wording should be read together with the **policy schedule** and the LifeProtect Policy Terms and Conditions.

Please read these documents carefully and keep them in a safe place.

Effective from 30 April 2025



YOUR COVER IN DETAIL

Words that are bold in this document are defined terms – you can find the definitions in section 6 or 7 of this cover wording, or in section 11 of the LifeProtect Policy Terms and Conditions.

1. Introduction

This Permanent Disability Cover provides **you** with a lump sum payment if the **insured person** suffers a **total and permanent disability**.

The **policy schedule** names the **insured person** this Permanent Disability Cover applies to.

2. Benefits

2.1 Total and Permanent Disability Benefit.

Total and permanent disability means that **we** are satisfied that one of the following events occurs prior to the **policy anniversary** after the **insured person's** 65th birthday:

a. Employed.

If the **insured person** was **gainfully employed** and has been absent from employment through sickness or injury for an uninterrupted period of three months, and in **our** reasonable opinion after considering all the medical evidence and other relevant evidence, has become so disabled that **they** will be unlikely ever again to be able to work in any capacity in **their own occupation**,

Or

b. Home duties.

If the **insured person** was not **gainfully employed** immediately before the event causing disability due to undertaking full-time **home duties, total and permanent disability** shall mean that **they**, for an uninterrupted period of at least three months:

- have been under medical supervision with the complete inability to perform all normal **home duties**, and
- have been unable to leave the home without assistance, and
- in **our** reasonable opinion based on medical and other relevant evidence, are unlikely to ever again be able to perform all normal **home duties**,

Or

c. has suffered the total and permanent loss of the:

- sight of both eyes, or
- use of two limbs (one limb being a whole hand or a whole foot), or
- sight of one eye, and the loss of the use of either a whole hand, or a whole foot.

Loss of the sight in an eye must be confirmed by a **specialist medical practitioner** and measured by one of the following:

- visual acuity of less than 6/60 in the affected eye after correction, or
- a field of vision constricted to 20 degrees of arc or less, or
- a combination of visual defects resulting in the same degree of visual impairment as that occurring in either of the above,

Or

d. is totally and permanently unable to perform at least two **activities of daily living** as a result of sickness or injury without the assistance of an adult,

Or

e. has suffered a sickness or injury of the brain resulting in permanent and irreversible loss of cognitive function that requires the **insured person** to be under continuous full-time care for **their** safety to prevent such situations including but not limited to wandering away from **their** usual place of residence, physical aggression, neglect of self-care, misjudging or causing situations that are dangerous for themselves or others.

The loss needs to be measured by clinical evidence and standardised tests which reliably measure the impairment in the following areas:

- Short or long term memory
- Orientation as to person (such as personal identity), place (such as location), and time (such as day, date and year)
- Deductive or abstract reasoning

2.2 Partial Disability Benefit.

We will pay a Partial Disability Benefit if the **insured person** suffers the total and permanent loss of use of one hand, one foot or the sight in one eye.

The loss of the sight must be confirmed by an appropriate **specialist medical practitioner** and measured by one of the following:

- visual acuity of less than 6/60 in the affected eye after correction, or
- a field of vision constricted to 20 degrees of arc or less, or
- a combination of visual defects resulting in the same degree of visual impairment as that occurring in either of the above.

2.3 How much do we pay?

If the **insured person** suffers a disability that meets the criteria of section 2.1 (Total and Permanent Disability Benefit), **we** will pay **you** the **sum insured**.

If the **insured person** suffers a disability that meets the criteria of section 2.2 (Partial Disability Benefit), **we** will pay **you** 25% of the **sum insured** up to \$75,000.

Where the event giving rise to the payment of the **sum insured** was already covered at the **start date** by a total and permanent disability type policy issued by **us** or another insurer (existing policy), then **we** will reduce the **sum insured** and **our** payment so that when added to any amount paid or payable under the existing policy, the total for the **insured person** doesn't exceed \$5,000,000.

The Permanent Disability Cover **sum insured** will reduce by any partial payment of the **sum insured** payable under this cover for the **insured person**. **We** will adjust the **premium** accordingly.

2.4 Total and Permanent Disability Early Payment.

If the cause of the **insured person's total and permanent disability** is due to one of the below conditions (to the extent defined in Section 7), **we** will waive the requirement for **them** to be absent from employment or unable to undertake full-time **home duties** for an uninterrupted period of three months. The conditions are:

- **Alzheimer's disease**
- **Cardiomyopathy**
- **Chronic lung disease**
- **Dementia**
- **Major head trauma**
- **Motor neurone disease**

- **Multiple sclerosis**
- **Muscular dystrophy**
- **Parkinson's disease**
- **Systemic sclerosis**

2.5 Financial Planning and Legal Advice Benefit.

When **we** pay a lump sum benefit of at least \$100,000 under this cover, **we** will reimburse **you**, up to a maximum of \$2,500 (including GST), towards the cost of:

- a fully documented financial plan prepared by a financial advice provider providing a financial planning service for **you**, or
- legal advice **you** receive from a lawyer.

Where there is more than one **policy owner** the Financial Planning and Legal Advice Benefit will be divided equally between those **policy owners**.

The reimbursement must be claimed within six months of receiving the lump sum benefit and will be payable only once in respect of all policies covering the same **insured person**.

If the reimbursement request is in relation to financial advice, **we** will require evidence to show that the financial plan has been provided, the qualifications of the financial adviser and the fees charged by the financial advice provider.

If the reimbursement request is in relation to legal advice, **we** will require evidence of the fees charged by the lawyer.

The financial plan or legal advice received must be in relation to a benefit paid by **us** under this cover.

2.6 Special Events Increase.

You can increase the **sum insured** once in any 12-month period before **the insured person's** 55th birthday without providing additional health information if one of the circumstances shown below occurs.

- a. **You** can increase **the sum insured** by up to the lesser of \$250,000 or 50% of the **sum insured** as at the **start date** of the cover if any of the following events apply to **them**:
 - marriage or civil union; or one of divorce or being subject to a separation agreement or order, or
 - either, pregnancy at 28 weeks gestation or birth of a **child**, or
 - adoption of a **child**, or
 - dependent **child** starting secondary school, or

- financially supporting a dependent **child** through a first course of full-time tertiary education, or
- reaching ages 25, 30, 35, 40 or 45, or
- either, death or terminal illness (diagnosed by an appropriately qualified **medical practitioner**, confirming a prognosis of less than 12 months to live) of a spouse, de facto partner, **child** or civil union partner, or
- **they** permanently stop work to provide full-time physical care for the first time for a dependent **relative**. However, be aware that if **they've** stopped working, **they** will not be eligible for a claim under 2.1a.

You cannot apply for more than one increase:

- if the **insured person** enters into a marriage or civil union relationship, or separates and/or divorces from a marriage or civil union relationship, with the same person more than once,
 - for both the pregnancy and birth of the same **child**,
 - for both the terminal illness (diagnosed by an appropriately qualified **medical practitioner**, confirming a prognosis of less than 12 months to live) and death of the same person.
- b. If the **insured person** takes out or increases a mortgage on **their** own home, investment property, vacation home, or residential block of land, **you** can increase **the sum insured** by up to the lesser of:
- 50% of the **sum insured** at the **start date**, or
 - the increase in the value of the existing mortgage or the amount of a new mortgage, or
 - \$250,000.
- c. If the **insured person** co-signs on a new mortgage for a **child**, **you** can increase **their sum insured** by up to the lesser of:
- 50% of the **sum insured** at the **start date**, or
 - the amount of the mortgage of the **child**, or
 - \$250,000.
- d. If the **insured person** has a **salary** increase of at least \$5,000 or a **salary** increase of at least 10% of **their salary**, **you** can increase the **sum insured** by up to the lesser of:
- 25% of the **sum insured** at the **start date**, or
 - five times the increase in **their salary**, or
 - \$250,000.

Conditions.

- a. **You** must exercise a Special Events Increase in writing with supporting evidence within the later of either:
- six months following the event, or
 - 30 days after the following **policy anniversary**.
- b. An increase under Special Events Increase isn't available if:
- The **insured person** has either had a claim paid or is entitled to be paid a claim under any policy with **us** or any other insurance company.
 - The **premiums** aren't up to date or are being waived for any reason.
 - The portion of cover is itself a result of a Special Events Increase.
- c. Any special terms and loadings that applied to the **sum insured** at the **start date** will also apply to the increase on that cover.
- d. **Your premiums** will increase in line with the increased **sum insured**. **We** will calculate the **premium** for the increase using the **insured person's** age and premium rates at the **start date** of that increase. The increased **sum insured** applies from the date **we** confirm the new **sum insured** to **you**, subject to payment of the additional **premium**.
- e. The maximum increase for the **insured person** for all events is the lesser of:
- \$1,000,000, or
 - the **sum insured** of the Permanent Disability Cover at the **start date**.
- f. The total cover when added to all other total and permanent disability type covers with any insurer after an increase cannot exceed \$5,000,000.

2.7 CPI Increases.

If **CPI** Increases are included in this cover, the **policy schedule** will state it.

How **we** apply **CPI** Increases is set out in section 7.1 of the LifeProtect Policy Terms and Conditions.

The last increase under **CPI** Increases for the **insured person** under Permanent Disability Cover will be applied on the earliest of:

- the **policy anniversary** after **their** 60th birthday, or
- the total sum insured for all permanent disability type covers for the **insured person** with **us** and any other insurer, reaching \$5,000,000. **You** must notify **us** if the total permanent disability type covers on the **insured person** will exceed this amount.

3. Claims

3.1 Notice.

You or the **insured person** must notify **us** immediately or as soon as practically possible if **you** or **they** become aware of any claim or potential claim under this Permanent Disability Cover.

We will advise **you** of the requirements **we** need to assess **your** claim.

We won't pay any claim until **we** receive all the requirements **we** need to assess the claim and confirm that the condition experienced by the **insured person** meets the definition set out in this document.

3.2 Obligations.

You and the **insured person** (if possible) must:

- Complete **our** claim form(s) in full and send it/them to **us** as soon as reasonably possible.
- Supply **us** with all relevant medical evidence **we** reasonably require in connection with the claim.
- Authorise the disclosure to **us** of the **insured person's** or **your** personal information in connection with the claim held by any other party.
- Authorise the disclosure of the **insured person's** or **your** personal information held by **us** to another party to evaluate the claim.
- Provide **us** with any other relevant information **we** reasonably require. This may include financial and occupational evidence. **You** must pay any expenses incurred in providing this information to prove **your** claim.

The **insured person** must:

- Provide a signed report from an appropriate **specialist medical practitioner** confirming the occurrence of a permanent disability condition which meets the criteria outlined in section 2.
- Undergo one or more medical examination(s) if **we** reasonably request of the **insured person** at **our** expense. This may include blood tests and medical testing.

We may also request other additional claim proofs necessary to complete **our** assessment of the claim including an independent opinion from an appropriate **medical practitioner** or **specialist medical practitioner** approved by **us**.

4. Exclusions

You cannot claim under this cover in connection with an intentional self-inflicted act or injury of the **insured person**.

5. When this cover ends

This Permanent Disability Cover ends for the **insured person** on the earliest of the date:

- a. **you** cancel the Permanent Disability Cover, or
- b. this Policy ends for any reason, or
- c. **we** pay the **sum insured** for **them**, or
- d. of the **policy anniversary** after **their** 65th birthday, or
- e. **they** die.

6. General definitions

The definitions shown below apply to all derivatives of the words defined. Where defined words are not shown below, they may be found in the LifeProtect Policy Terms and Conditions.

Activities of daily living.

- a. Bathing or showering - the ability to wash in the bath or shower (including getting in or out of the bath or shower) or wash satisfactorily by other means.
- b. Dressing and undressing - the ability to put on, take off, secure and unfasten all necessary garments and as appropriate any braces, artificial limbs or other surgical appliances.
- c. Eating and drinking - the ability to feed oneself once food and drink have been prepared.
- d. Using a toilet - the ability to use the toilet with or without aids or otherwise manage bowel and bladder function so as to maintain a satisfactory level of personal hygiene.
- e. Moving from place to place by walking, wheelchair or with the assistance of a walking aid including mechanical or motorised devices.

The **insured person** will be considered to be able to perform the activity if it can be performed by using equipment or adaptive devices.

Gainfully employed.

Working in an occupation or job as an employee for reward, salary, commission or any other income. For an **insured person** who is self-employed, working in any business or professional practice which could produce income for that business or professional practice.

Home duties.

The duties normally associated with a person who is engaged in full-time unpaid home duties within the family home, and is not employed in any occupation or working outside the **insured person's** home for salary, reward or profit, includes:

- a. Cleaning the family home, such as using a vacuum cleaner, sweeping with a broom, using a mop and cleaning dishes (automatic or manual).
- b. Cooking the family meals, such as preparing fresh and frozen food and using an oven, stove or microwave oven.
- c. Doing the family's laundry, such as loading and unloading a washing machine, hanging out clothes or using a dryer, folding clothes and ironing.
- d. Shopping, such as attending shops or using the phone or internet to purchase food for the family.
- e. Taking care of the **insured person's** dependent children (where applicable) such as supervising, lifting, transporting, feeding and bathing.

We will not consider an **insured person** who is actively seeking employment or is performing less than full-time unpaid home duties to be performing home duties.

Own occupation.

The field of work in which the **insured person** has trained and was engaged immediately before becoming **totally and permanently disabled**.

Total and permanent disability.

A sickness or injury resulting in the **insured person** meeting the definition as outlined in section 2.1.

Whole person function.

The evaluation of whole person function derived from the most recent edition of the American Medical Association's book Guides to the Evaluation of Permanent Impairment, or an equivalent guide to impairment approved by **us**, as assessed by an appropriately qualified **medical practitioner**.

7. Definitions of early payment conditions

Alzheimer's disease.

The confirmed diagnosis by a **specialist medical practitioner** of Alzheimer's disease with the permanent and irreversible loss of cognitive function. Loss of cognitive function is deterioration or loss of intellectual capacity which requires the need for daily supervision by another adult to ensure the **insured person's** safety. Daily supervision means situations such as preparing food, taking medicines, leaving the home or activities of similar severity.

The loss needs to be measured by clinical evidence and standardised tests which reliably measure the impairment in the following areas:

- Short or long term memory
- Orientation as to person (such as personal identity), place (such as location), and time (such as day, date and year)
- Deductive or abstract reasoning.

Cardiomyopathy.

Impaired ventricular function of variable aetiology, resulting in physical impairments to the degree of at least class 3 of the New York Heart Association Classification of Cardiac Impairment or equivalent classification of cardiac impairment.

Chronic lung disease.

End stage lung disease requiring permanent oxygen therapy and with:

- FEV1 test results of consistently less than one litre, or
- at least 25% permanent impairment of **whole person function**, or
- the permanent inability of the **insured person** to perform at least one of the **activities of daily living** without the assistance of an adult.

Dementia.

The confirmed diagnosis by a **specialist medical practitioner** of dementia with the permanent and irreversible loss of cognitive function. Loss of cognitive function is deterioration or loss of intellectual capacity which requires the need for daily supervision by another adult to ensure the **insured person's** safety. Daily supervision means situations such as preparing food, taking medicines, leaving the home or activities of similar severity.

The loss needs to be measured by clinical evidence and standardised tests which reliably measure the impairment in the following areas:

- Short or long term memory
- Orientation as to person (such as personal identity), place (such as location), and time (such as day, date and year)
- Deductive or abstract reasoning.

Major head trauma.

Permanent neurological deficit caused by an external accidental injury to the head which is confirmed by a **specialist medical practitioner** as resulting in either:

- at least 25% permanent impairment of **whole person function**, or
- the permanent inability of the **insured person** to perform at least one of the **activities of daily living** without the assistance of an adult.

Motor neurone disease.

The unequivocal diagnosis of motor neurone disease by two appropriate **specialist medical practitioners**.

Multiple sclerosis.

The unequivocal diagnosis by an appropriate **specialist medical practitioner** of multiple sclerosis confirming more than one episode of well-defined neurological abnormalities and

- at least 25% permanent impairment of **whole person function**, or
- the permanent inability to perform at least one of the **activities of daily living** without the assistance of an adult, or
- Expanded Disability Status Scale (EDSS) level of 7.5 or higher.

The diagnosis must be based on confirmatory neurological investigations e.g. lumbar puncture, evoked visual responses, evoked auditory responses and NMR (Nuclear Magnetic Resonance) evidence of lesions of the central nervous system.

Muscular dystrophy.

The unequivocal diagnosis of muscular dystrophy by an appropriate **specialist medical practitioner**.

Parkinson's disease.

The unequivocal diagnosis of Idiopathic Parkinson's disease by a **specialist medical practitioner** resulting in:

- at least 25% permanent impairment of **whole person function**, or
- the permanent inability of the **insured person** to perform at least one of the **activities of daily living** without the assistance of an adult.

Systemic sclerosis.

The unequivocal diagnosis of systemic sclerosis, as confirmed by an appropriate **specialist medical practitioner**, causing:

- skin thickening accompanied by various degrees of tissue fibrosis, and
- chronic inflammatory infiltration in visceral organs, and
- the permanent inability of the **insured person** to perform at least one of the **activities of daily living** without the assistance of an adult.

Westpac life insurance products are arranged by Westpac New Zealand Limited ("Westpac") and underwritten by Fidelity Life Assurance Company Limited ("Fidelity Life"). None of Westpac Banking Corporation ABN 33 007 457 141 (incorporated in Australia), Westpac, or any member of the Westpac group of companies guarantee the obligations of, or any products issued by, Fidelity Life or any member of the Fidelity Life group of companies.

Westpac will receive commission payments as a result of the arrangement of Fidelity Life policies.

Fidelity Life Assurance Company Limited.